

ENGLISH VERSION — Part 1 (\$1–\$10)

GENERAL TERMS AND CONDITIONS (GTC)

Effective from: 25 February 2026

Version: 2.0

Status: IN EFFECT

Previous version: Sharity GTC dated 10 November 2022

1. Service Provider Information

Description	Details
Service Provider name	Sharity Mobile Application Zrt. (hereinafter: Service Provider)
Registered seat	7090 Tamási, Petőfi Sándor utca 12., Hungary

Company registration number	17-10-001325
Tax number	28751843-2-17
Contact e-mail	office@sharity.hu
Website	https://app.sharity.hu

Description	Details
Donation Organizer name	Sharity Adományszervező Alapítvány (hereinafter: Donation Organizer)
Registered seat	7090 Tamási, Petőfi Sándor utca 12., Hungary
Court registration number	17-01-0000200
Tax number	19329006-1-17

The Service Provider and the Donation Organizer may jointly be referred to as "**Sharity**" in these GTC, where it is clear from the context which entity is acting.

2. Definitions

Term	Meaning
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Platform	The web-based service operated by the Service Provider, accessible at the <code>app.sharity.hu</code> and <code>shariteam.com</code> domains, including all associated sub-pages and API endpoints.
Impact Shop	The Platform feature through which the User may shop via the affiliate links of 500+ partner stores (webshops), whereby a portion of the affiliate commission generated by the purchase is converted directly into a donation for the NGO / Non-Profit Organization chosen by the User.
Impact Challenge	The Platform feature where the User may watch short (max. 30-second) sponsor videos, complete Offerwall tasks (surveys, app trials, sign-ups), and receive Points and Votes in return.
Impact Amplifier	The Platform feature through which the User may make donations to the Donation Organizer and receive Votes in return, depending on the amount and the selected package.
Digital Raffle	The Platform feature through which the User may obtain a Digital Raffle Ticket and participate in an automatic draw based on the prize code number(s) assigned to the Raffle Ticket.
Digital Raffle Ticket (or Raffle Ticket)	A digital ticket entitling the holder to participate in the Digital Raffle, bearing a unique identifier / prize code number, delivered to the User by the Service Provider via e-mail or SMS.
Win4Good – Prize Draw	A Digital Raffle / prize draw organised by the Service Provider on the Platform, the detailed rules of which are set out in the annex to these GTC.

Auction	The Platform feature in which Users may place bids / make donations under specified rules, in a manner linked to donation payments, and may acquire eligibility for a prize upon fulfilment of the conditions.
Dutch-type Auction	An Auction in which the starting price decreases over time; the winner is the User who "strikes" the current price and completes the strike with an immediate, successful donation payment.
NGO Card	An embeddable web widget (card) that NGOs / Non-Profit Organizations may place on their own websites, displaying real-time data on the donations collected for the given organization.
Partner API	The programming interface (REST API) operated by the Service Provider, through which Partners may record transactions, query discounts, and open disputes.
User	A natural person who uses the Platform (shops in the Impact Shop, participates in the Impact Challenge, or donates through the Impact Amplifier). The User may also use the Platform without registration, on the basis of a Pseudo ID.
Pseudo ID	An anonymous identifier, 12 characters long (base36), automatically generated in the User's browser, to which Points, Votes, and Level/Tier classification are linked.
Sharity ID	The User's unique identifier, linked to the Pseudo ID or — in the case of registration — to an e-mail address, by means of which the User may claim discounts in the Partners' systems.

NGO / Non-Profit Organization (or Civil szervezet)	A civil organization, foundation, association, or public-benefit organization registered on the Platform and falling within the scope of Act CLXXXI of 2011 on the Court Registration of Civil Organizations and Related Procedural Rules.
Partner	A business (webshop, bricks-and-mortar store, service provider) that cooperates with the Service Provider under an affiliate, direct (API), or sponsorship agreement.
Sponsor	A business that purchases video or banner placement in the Impact Challenge under an individual agreement.
Offerwall Partner	A business that offers tasks (surveys, app trials, etc.) to Users on the Impact Challenge Offerwall interface, either directly or through an Offerwall provider (Bitlabs, Pollfish, Cint, ayeT-Studios, CPX Research).
Point	The unit of the Platform's motivational system, awarded to the User for various activities (shopping, video watching, tasks, daily login, etc.) and used exclusively for Level/Tier progression.
Vote	The unit of the Platform's donation-distribution system. The User casts Votes for the NGO of their choice, and the Quarterly Distribution is made in proportion to the Votes cast.
Level/Tier	The classification achieved by the User based on activity (Basic, Bronze, Silver, Gold, Platinum, Legend), which determines the discount percentage, the vote weight multiplier, and the donation multiplier.

Common Donation Pool	A fund managed by the Service Provider, into which 50% of Impact Amplifier donations and a portion of Impact Challenge advertising revenues are channelled, and which is distributed quarterly among the NGOs in proportion to the Votes cast.
Quarterly Distribution	The quarterly allocation of the Common Donation Pool among the NGOs, in proportion to the Votes cast.
Contract	The legal relationship established between the Service Provider and the User, the NGO, or the Partner by acceptance of these GTC.

3. Scope and Acceptance of the GTC

3.1. These GTC govern the legal relationship between the Service Provider and the following persons:

- (a) **Users** — who use the Platform;
- (b) **NGOs / Non-Profit Organizations** — which are registered on the Platform and receive donations;
- (c) **Partners** — which cooperate with the Service Provider under a partnership agreement.

3.2. By using any feature of the Platform — including shopping in the Impact Shop, participating in the Impact Challenge, donating through the Impact Amplifier, using the Partner API, and participating in the Digital Raffle and/or the Auction — the user declares that they have read and understood these GTC and the Privacy Notice and accept them as binding upon themselves.

3.3. These GTC constitute general terms and conditions within the meaning of Sections 6:77–6:81 of Act V of 2013 (Hungarian Civil Code, hereinafter:

Ptk.).

3.4. Acceptance of the GTC: - **For Users:** by commencing use of the Platform (implied conduct) or by ticking the GTC acceptance checkbox during optional registration; - **For NGOs:** by registering on the Platform and expressly accepting the GTC; - **For Partners:** by signing the individual partnership agreement, which refers to these GTC.

4. Description of Services

4.1 Impact Shop

4.1.1. The Impact Shop offers affiliate links to 500+ partner stores. The User shops at the regular price; the store pays an affiliate commission, a portion of which is directly converted into a donation for the NGO chosen by the User.

4.1.2. The size of the donation depends on the following factors: - (a) The affiliate commission rate (varies by store, typically 2–15%); - (b) The NGO's tier: Base (40%), Rising (50%), Legend (60%); - (c) The **donation multiplier** corresponding to the User's Level/Tier (Basic $\times 1.00$ – Legend $\times 1.25$).

4.1.3. The donation multiplier differential is borne by the Service Provider from its own share — it entails no additional cost to the User and no additional fee to the Partner.

4.1.4. In addition to the purchase, the User also receives Points and Votes.

4.2 Impact Challenge

4.2.1. In the Impact Challenge, the User may: - (a) watch short (max. 30-second) sponsor videos; - (b) complete Offerwall tasks (filling out surveys, trying out applications, sign-ups); - (c) earn Points for other activities (daily login, completing profile, sharing the page, etc.).

4.2.2. Video watching and task completion are free of charge for the User. Revenue is derived from advertisers and Sponsors.

4.2.3. **Streak bonus:** activity on consecutive days provides a multiplier on Points and Votes (7 days: ×1.10; 14 days: ×1.20; 30 days: ×1.30). The Streak does not apply to Sponsor videos.

4.3 Impact Amplifier (Donations)

4.3.1. Through the Impact Amplifier feature, the User may make a donation to the Donation Organizer and receive Votes immediately in return.

4.3.2. **Vote packages:**

Package	Donation	Votes	Bonus
 Starter	HUF 500	500	—
 Supporter	HUF 1,000	1,100	+10%
 Champion	HUF 2,500	3,000	+20%
 Hero	HUF 5,000	6,500	+30%
 Legend	HUF 10,000	15,000	+50%

4.3.3. Distribution of the donation: - **50%** → Common Donation Pool (distributed quarterly among the NGOs in proportion to Votes); - **50%** → Platform maintenance cost (the Service Provider's system-usage fee, invoiced to the Donation Organizer).

4.3.4. Legal classification of the payment: **donation** to the Sharity Adományszervező Alapítvány (Sharity Donation Organizer Foundation). As a general rule, the donation is **non-refundable** (Rule D6). The User acknowledges that a **chargeback** may technically be initiated under the payment service provider's / card scheme's procedures; the Service Provider may decide on a refund only in exceptional, substantiated cases (in

particular, a demonstrably verified technical error or demonstrably verified duplicate charge). In the event of a refund, the credited Votes shall be revoked.

Action Item/TODO: Finalise the legal framework for `docs/dispute-handling-procedure.md` and the refund/chargeback communication (exceptional cases, burden of proof, deadlines, decision-making principles).

4.3.5. For corporate donors, the Donation Organizer — also taking into account that the Donation Organizer **does not hold public-benefit status** — shall issue a donation certificate in accordance with applicable legislation, containing the legal basis and mandatory content elements required for the purposes of corporate tax-base allowance / certification.

Action Item/TODO: To be clarified with legal counsel before entry into force: (1) the precise designation of the Donation Organizer's actual legal status, (2) the appropriate reference under the Corporate Tax Act (e.g. Section 7(1) point z) vs. point d) or other relevant provision), (3) the mandatory content elements and conditions of the donation certificate.

4.3.6. Payment is processed through the Stripe payment service provider, on a Stripe Checkout hosted page. Card data is transmitted exclusively to Stripe's systems — the Service Provider's server does not process card data (PCI-DSS SAQ-A).

4.3.7. Multi-currency pricing is available (EUR, USD, GBP, CZK, PLN). Current prices are displayed on the Platform interface; the Service Provider may review them quarterly.

4.4 NGO Card

4.4.1. NGOs may place an embeddable card (NGO Card) on their own websites, showing the total donations collected for the given organization in real time.

4.4.2. Embedding is achieved by inserting a JavaScript code snippet, the technical specification of which is available at <https://app.sharity.hu/ngo->

guides/ngo-card/.

4.4.3. The NGO Card is also available in Apple Wallet Pass format.

4.5 Point and Level/Tier System

4.5.1. Users receive Points for the following activities (non-exhaustive list):

Activity	Points	Note
Video watching (standard)	1	Streak multiplier applies
Video watching (sponsor)	5	Streak multiplier does not apply
CTA click	5	
Daily login	2	Once per day
Profile completion	10	One-time
Purchase (Impact Shop)	≈ purchase value (HUF)	Per transaction
First purchase bonus	100	One-time
Friend referral	200	Referrer receives

4.5.2. **Levels/Tiers and benefits:**

Level/Tier	Point Threshold	Discount	Vote Weight	Donation Multiplier
 Basic	0	50%	×1	×1.00
 Bronze	2,000	60%	×2	×1.05

 Silver	15,000	70%	×3	×1.10
 Gold	50,000	80%	×4	×1.15
 Platinum	120,000	90%	×5	×1.20
 Legend	250,000	100%	×6	×1.25

4.5.3. The discount percentage means the proportion of the maximum discount set by the Partner that the User receives (e.g. if the maximum discount is 20% and the User is Gold-tier, $20\% \times 80\% =$ the User receives a 16% discount).

4.5.4. The vote weight multiplier applies at the time of casting a Vote: a single Vote cast by a Legend-tier User is worth 6× that of a Basic-tier Vote.

4.5.5. Point thresholds are adjusted to the size of the community. The Service Provider reserves the right to modify the point thresholds, notifying Users on the Platform at least 30 days in advance.

4.5.6. **Point decay:** Points may decrease on a daily basis after 5 days of inactivity, but may not fall below 100 Points. Active use halts the decay.

4.6 Votes and Quarterly Distribution

4.6.1. The User may cast Votes for one or more NGOs.

4.6.2. The Common Donation Pool is distributed quarterly among the NGOs, in proportion to the Votes cast:

$$\text{ngo_share} = (\text{ngo_votes} / \text{total_valid_votes}) \times \text{total_pool_amount}$$

4.6.3. Payouts are made quarterly (end of March, June, September, December). The **minimum payout amount is HUF 5,000** per channel (Impact Shop direct donation, and Impact Challenge/Amplifier Common Donation Pool share, respectively). The two channels are **not aggregated**

for the purposes of the minimum threshold. In its informational materials, the Service Provider treats the **quarterly** schedule as canonical; any discrepancy in publicly available guides does not alter the provisions of these GTC.

Action Item/TODO: Restore coherence of public guides before entry into force: on the <https://app.sharity.hu/ngo-guides/impact-challenge/> page, change "monthly ... distribution/payout" wording to **quarterly**, and cross-check with the <https://app.sharity.hu/rolunk/> page.

4.6.4. If the quarterly amount does not reach the HUF 5,000 minimum on a given channel, the amount **shall not be paid out and shall be forfeited** for that quarter. The Service Provider shall notify the affected NGOs accordingly.

4.6.5. Votes received through the Impact Amplifier and Votes earned free of charge carry equal weight in the Quarterly Distribution (taking into account the vote weight multiplier).

5. User Registration and Identification

5.1. Formal registration is not required to use the Platform. Upon the first visit, a **Pseudo ID** (anonymous identifier) is automatically created in the User's browser, to which Points and Votes are linked.

5.2. The User acknowledges that the Pseudo ID is bound to the browser's local storage (cookie / localStorage). The Pseudo ID may be lost if browser data is cleared or the device is changed. The User may save their recovery identifier.

The User acknowledges that the Pseudo ID and the associated technical identifiers (e.g. cookie/localStorage identifier, IP address, transaction identifiers) may, depending on the circumstances, qualify as **personal data**,

particularly where they can be linked to other data (e.g. e-mail address, payment transaction).

Action Item/TODO: Coherence update of the Privacy Notice and the Cookie Notice: storage methods (cookie/localStorage), legal basis/bases, retention periods, and clarification of the roles and disclosures of affiliate tracking partners (in particular Dognet, CJ, TradeTracker) and Offerwall providers (e.g. Bitlabs, Pollfish, Cint, ayeT-Studios, CPX Research).

5.3. The User may optionally register by providing an e-mail address and password, enabling cross-device synchronization of their progress.

5.4. The User acknowledges that persons under the age of 16 may not use the Platform. The Service Provider is not obliged to verify age, but upon becoming aware of a breach of this rule, it shall immediately delete the data of the User concerned.

5.5. The User is required to provide an **e-mail address** during the Impact Amplifier payment process if they request a donation certificate (mandatory for corporate donations). The e-mail address is processed solely for the purpose of issuing the donation certificate and sending a confirmation.

6. Registration of NGOs / Non-Profit Organizations

6.1. The conditions for registration of an NGO on the Platform are as follows:

- (a) A civil organization, foundation, association, or public-benefit organization registered in Hungary;
- (b) not subject to liquidation, bankruptcy, winding-up, or enforcement proceedings;
- (c) no pending criminal proceedings against the organization or its senior officer;

- (d) the data provided are complete and accurate.

6.2. The Service Provider shall assess the registration application and notify the NGO of its decision by electronic means. The Service Provider is entitled to reject the registration without providing reasons.

6.3. The NGO is required to report any change in its data within 5 working days. In the event of failure to do so, the Service Provider is entitled to suspend the NGO's participation through the Platform.

6.4. **NGO tiers:** The NGO receives a ranking-based classification (Base, Rising, Legend), which determines the proportion of the commission allocated as a donation. The classification is determined by the Service Provider on the basis of vote count and activity, and is reviewed on a regular basis.

7. Partner Onboarding

7.1. The Service Provider offers four modes of onboarding for Partners:

Mode	Description	Cost
Affiliate Partner	Joins through an existing affiliate network (Dognet, Tradedoubler, etc.)	HUF 0 — from existing affiliate commission
Direct Partner (API)	Joins via own integration through the Partner API; can also offer discounts	HUF 0 onboarding — you determine the commission %
Sponsor	Video or banner placement in the Impact Challenge	Custom pricing

Offerwall Partner	Surveys, quizzes, tasks for Users	Individual agreement
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7.2. Affiliate and Direct Partner onboarding is free of charge; the Service Provider participates solely in commissions arising from successful transactions.

7.3. Use of the Direct Partner API is secured with HMAC SHA-256 signing, idempotency, and timestamp protection. Technical specification: <https://app.sharity.hu/partner-api>.

7.4. The Partner undertakes to provide Users with the discount corresponding to their Level/Tier (where the Partner operates a discount scheme).

7.5. The Partner is entitled to terminate its agreement with the Service Provider under the conditions set out in the individual partnership agreement.

8. Donation Multiplier and Commission Distribution (Direct Partner)

8.1. The commission percentage set by the Direct Partner is automatically distributed as follows:

- (a) **40–60%** → Donation to the NGO (depending on the NGO's tier: Base 40%, Rising 50%, Legend 60%);
- (b) **Remaining portion** → Sharity platform fee.

8.2. The **donation multiplier** corresponding to the User's Level/Tier (×1.00 – ×1.25) multiplies the donation portion payable to the NGO. Example: Legend NGO (60%) × Legend user (×1.25) = 75% of the commission becomes a

donation. The multiplier differential is borne by the Service Provider from its own share.

8.3. Customer discounts operate independently of the commission, under a separate agreement.

9. Rights and Obligations of the Service Provider

9.1. The Service Provider undertakes to: - (a) operate the Platform and provide the Services during the term of these GTC; - (b) distribute the Common Donation Pool quarterly among the NGOs in a transparent manner; - (c) provide Partners with access to the partner dashboard and reports; - (d) respond to enquiries from Users and NGOs within a reasonable period (max. 5 working days).

9.2. The Service Provider reserves the right to: - (a) discontinue the provision of the Services and the operation of the Platform at any time without giving reasons, by notifying Users and NGOs at least 30 days in advance; - (b) introduce new features, or modify or discontinue existing features; - (c) adjust Level/Tier thresholds, Point values, and Vote weight multipliers to the size of the community; - (d) remove any content appearing on the Platform that is in breach of law, misleading, or otherwise inappropriate.

9.3. The Service Provider is entitled to engage subcontractors for the performance of the Contract.

10. Limitation of Liability

10.1. The Service Provider provides the Services available in the Impact Shop, the Impact Challenge, and the Impact Amplifier **"as is"**.

10.2. The Service Provider shall **not be liable** for: - (a) technical failures of the Platform (network connection, server performance, network congestion, Cloudflare/CDN outage); - (b) outages in the affiliate network (Dognet) services or delays in the crediting of commissions; - (c) malfunction of the Stripe payment service or delays caused by Stripe; - (d) damages arising from incorrect data provided by the User (e.g. incorrect e-mail address, erroneous Pseudo ID); - (e) loss of Points or Votes resulting from the loss of the Pseudo ID (clearing of browser data, device change); - (f) the legality of content published on the Platform by third parties; - (g) the accuracy of the data provided by the NGO; - (h) the quality of the Partners' products or services, or disputes between the User and the Partner.

10.3. The limitation of liability set out above does not affect the Service Provider's liability for intentionally caused breaches of contract, or for breaches causing damage to life, bodily integrity, or health.

10.4. Use of the Platform is free of charge for Users. In view of the gratuitous nature of the service — and having regard to Section 6:521(2) of the Hungarian Civil Code (Ptk.) — the Service Provider excludes its liability for direct and consequential damages vis-à-vis Users, to the fullest extent permitted by law.

ENGLISH VERSION — Part 2 (§11–§22)

11. Intellectual Property Rights

11.1. The Service Provider is the holder of the economic copyright in the Platform — including its source code, object code, graphic elements, documentation, databases and software architecture — as protected by Act LXXVI of 1999 on Copyright (Copyright Act, "Szjt.").

11.2. The Service Provider grants the User and the NGO a non-exclusive, non-transferable, revocable licence to use the Platform for its intended purpose.

11.3. The licence does not extend to the adaptation, reverse-engineering, translation or any other modification of the Platform. Sub-licensing is not permitted.

11.4. The NGO and the User warrant that any content they upload (images, texts, videos) does not infringe the copyright, trademark rights, personality rights or any other statutory provision of any third party. Any claim or sanction arising from infringing content shall be borne by the uploader.

12. Obligations of the User

12.1. The User shall: - (a) use the Platform for its intended purpose, in compliance with these GTC, the applicable laws and good morals; - (b) refrain from any activity that jeopardises the IT operation of the Platform (e.g. automated scripts, bots, DDoS); - (c) provide accurate data whenever the Platform requests data entry (Impact Amplifier payment process, registration); - (d) notify the Service Provider without delay if the User detects any unauthorised use of the User's account or Pseudo ID.

12.2. The User is not entitled to: - (a) publish political, hateful, obscene or otherwise unlawful content; - (b) misuse the personal data of others; - (c) manipulate the voting or points system (e.g. by creating fake Pseudo IDs or by automated voting).

12.3. In the event of a breach of Section 12.2, the Service Provider is entitled to immediately exclude the User (deletion of Pseudo ID / account), which simultaneously constitutes termination of the Agreement.

13. Obligations of the NGO

13.1. The NGO shall: - (a) ensure the accuracy and completeness of the data provided at registration; - (b) report any data changes within 5 business days; - (c) provide any information or certificates requested by the Service Provider within 8 business days; - (d) assume responsibility for the lawfulness of the content published on the Platform and for compliance with copyright.

13.2. The NGO acknowledges that its registration on the Platform and its donation eligibility may be suspended or terminated at the discretion of the Service Provider, in particular: - (a) if the NGO does not meet the Entry Criteria; - (b) if the NGO engages in conduct contrary to law; - (c) if the NGO fails to keep its data up to date; - (d) if the NGO fails to comply with its duty to cooperate upon a request by the Service Provider.

14. Payment and Financial Provisions

14.1 Impact Amplifier — Payment

14.1.1. Payment is processed on the hosted Stripe Checkout interface provided by **Stripe Payments Europe, Limited** (Dublin, Ireland). The Service Provider's server does not handle card data.

14.1.2. Security measures applied by the Service Provider: - Cloudflare Turnstile (CAPTCHA) before checkout initiation; - Rate limiting: max. 10

checkouts / hour / IP; max. 5 checkouts / hour / Pseudo ID; - Stripe Radar built-in fraud detection; - 3D Secure / SCA applied automatically for EU transactions.

14.1.3. Following a successful payment, Votes are immediately credited to the User's balance and are automatically allocated to the selected NGO(s).

14.1.4. Donations are **non-refundable** (Rule D6). In exceptional cases (e.g. proven technical error, double charge) the Service Provider may decide on a refund on a case-by-case basis — in which case the credited Votes are revoked.

14.2 Impact Shop — Affiliate Commission

14.2.1. Affiliate commissions are credited in accordance with the rules of the affiliate network (typically Dognet). Crediting typically occurs with a 30–90 day delay (industry standard).

14.2.2. If a User's order is returned, the commission is cancelled and no donation arises from it.

14.3 Payouts to NGOs

14.3.1. Payouts are made quarterly, by bank transfer, in accordance with Sections 4.6.3–4.6.4 of these GTC.

14.3.2. The Service Provider prepares a quarterly distribution report for each payout, which is made available to the NGO.

14.4 Free-of-Charge Nature of the Services

14.4.1. The Service Provider makes the Platform available to Users **free of charge**.

14.4.2. The Service Provider does not charge NGOs any joining fee, membership fee or other direct cost on any basis. The Service Provider's revenues are derived exclusively from partner commissions, the Impact Amplifier platform share and sponsorship fees.

14.4.3. Affiliate and Direct Partner onboarding is likewise free of charge.

15. Dispute Handling

15.1. A Partner may raise a dispute (refund, amount discrepancy, missing transaction) via the Partner API `/partner/dispute` endpoint or through the partner dashboard.

15.2. The Service Provider shall provide an initial response to the dispute within 2 business days and a decision within 5 business days.

15.3. Disputes relating to Impact Amplifier are governed by the internal operational procedure set out in `docs/dispute-handling-procedure.md`. In the event of a chargeback against the User, the exclusion of the right to reclaim the donation applies under §4.3.4 (Rule D6). The allocation of responsibility in connection with the Stripe chargeback procedure is set out in `docs/stripe-responsibility-matrix.md`.

16. Data Protection

16.1. The processing of personal data is governed by Regulation (EU) 2016/679 of the European Parliament and of the Council (**GDPR**) and Act CXII of 2011 on the Right of Informational Self-Determination and on Freedom of Information (Freedom of Information Act, "Infotv.").

16.2. The Service Provider publishes its detailed Privacy Notice at <https://app.sharity.hu/adatkezeles>.

16.3. The Platform is fundamentally based on the **Pseudo ID** system, which, in itself, is typically not suitable for identifying the User; however, the Pseudo ID and the associated technical identifiers **may constitute personal**

data depending on the circumstances (in particular where they can be linked to an IP address, a transaction or an email address).

16.4. Personal data is processed exclusively in the following cases: - (a) Impact Amplifier payment: email address (for the purpose of donation certification, on the basis of consent), company data; - (b) optional registration: email address + password; - (c) NGO registration: organisation data, contact person data (necessary for the performance of the contract); - (d) Partner onboarding: company data, contact person (necessary for the performance of the contract); - (e) Digital Raffle / sweepstakes: contact data necessary for the administration of participation (in particular email address, and — where the ticket/notification is delivered by SMS — telephone number), as well as activity data relating to participation (e.g. identifier of the viewed content/relevant campaign) for the purpose of conducting the draw and awarding the prize; - (f) Auction: identifiers and transaction data relating to participation and the hammer/donation payment (in particular payment status and transaction identifiers) for the purpose of performing the contract and preventing misuse.

16.5. Data processors engaged by the Service Provider: - **Stripe Payments Europe, Limited** — payment service provider; - **Dognet s.r.o.** — affiliate network; - **Cloudflare, Inc.** — CDN, WAF, DDoS protection; - **Ezit Kft.** — hosting provider; - **Vonage (Nexmo SMS API)** — SMS delivery (Digital Raffle ticket/notification). For data subjects in the UK/EEA, in addition to Vonage Holdings Corp., the following group members may also process personal data (service provision, marketing, support): **Ericsson**; **Vonage Business Limited** (company number: 03602868; 5 Churchill Place, 10th Floor, London E14 5HU, UK); **Vonage V.B.** (Radarweg 29 A 12 Office, 1043NX Amsterdam, The Netherlands); - **Google Cloud** — AI Agent features (optional).

A detailed register of data processors is maintained in the `docs/gdpr-data-processors.md` document.

16.6. **Cookies:** the Platform uses functional cookies (Pseudo ID storage, session). In connection with certain features of the Platform, affiliate and

offerwall partners may also use cookies or similar technologies; the data-processing role (independent controller / processor) associated with these may vary. Details of cookie management are set out in the Cookie Notice.

16.7. **Right to erasure:** the data subject may request the erasure of their personal data at privacy@sharity.hu. The Service Provider shall fulfil the request within 30 days, unless a statutory retention obligation applies (accounting: 8 years, VAT: 5 years).

17. Amendment of the GTC

17.1. The Service Provider is entitled to amend the GTC unilaterally. Notice of amendments: - **For NGOs:** the Service Provider shall notify NGOs at least 30 days before the amendment takes effect, via the admin interface and by electronic mail; - **For Users:** the Service Provider shall notify Users at least 7 days before the amendment takes effect, via the Platform; - **For Partners:** in accordance with the provisions of the individual partner agreement.

17.2. The amendment takes effect upon publication on the Platform.

17.3. In urgent cases (curbing abuse, court/authority order, legislative change) the Service Provider may amend the GTC with immediate effect, with retrospective notice.

17.4. The NGO may terminate the Agreement before the amended GTC takes effect.

18. Termination of the Agreement

18.1 In the Case of the User

18.1.1. The User may delete their registration (if registered) or cease using the Platform at any time.

18.1.2. The Pseudo ID and its associated data are not automatically deleted in the event of inactivity, but the Service Provider is entitled to delete them after 12 months of inactivity.

18.1.3. The Service Provider shall immediately delete the User's Pseudo ID / account in the event of a serious breach of the GTC (Sections 12.2–12.3).

18.2 In the Case of the NGO

18.2.1. Either the NGO or the Service Provider may terminate the Agreement at any time in writing, with 15 days' notice.

18.2.2. The Service Provider may terminate the Agreement with immediate effect if: - (a) the NGO does not meet the Entry Criteria (Section 6.1); - (b) the NGO engages in conduct contrary to law or to the GTC; - (c) the NGO fails to comply with its duty to cooperate upon a request by the Service Provider; - (d) the NGO breaches the intellectual property provisions (Section 11).

18.2.3. Termination of the Agreement for any reason does not affect the NGO's entitlement to donations collected up to the date of termination but not yet paid out, provided that the amount reaches the minimum payout threshold (HUF 5,000 / channel).

18.3 In the Case of a Partner

18.3.1. Termination of the Partner Agreement is governed by the provisions of the individual partner agreement.

19. Complaint Handling

19.1. Users may submit complaints at the following contact details: - **E-mail:** office@sharity.hu - **Postal address:** 7090 Tamási, Petőfi Sándor utca 12.

19.2. The Service Provider shall respond to the complaint on the merits within 30 days. If the complaint cannot be investigated immediately, the Service Provider shall prepare a written record, a copy of which shall be sent together with the substantive response.

19.3. The Service Provider shall retain the written record of the complaint and the copy of the response for 3 years.

19.4. If the complaint cannot be resolved, the following legal remedies are available to the User:

(a) Arbitration Board / Conciliation Body: - Tolna County Arbitration Board (Tolna Vármegyei Békéltető Testület) - Address: 7100 Szekszárd, Arany János utca 23–25. - E-mail: kamara@tmkik.hu - Telephone: (74) 411-661

(b) Consumer Protection Authority: - The consumer-protection department of the competent capital or county government office at the User's place of residence - <https://www.kormanyhivatal.hu>

(c) Online Dispute Resolution (ODR): (https://consumer-redress.ec.europa.eu/index_hu)
https://europa.eu/youreurope/citizens/consumers/consumers-dispute-resolution/index_hu.htm

(d) Data-protection complaint: - National Authority for Data Protection and Freedom of Information (NAIH) - 1055 Budapest, Falk Miksa utca 9–11. - <https://www.naih.hu>

19.5. The NGO may submit a written complaint (office@sharity.hu) against any decision of the Service Provider, which the Service Provider shall investigate within 30 days.

20. Settlement of Legal Disputes

20.1. The Service Provider and the NGO shall attempt to resolve any disputes arising between them primarily through out-of-court negotiation.

20.2. In the event that negotiation is unsuccessful, the Service Provider and the NGO submit to the exclusive jurisdiction of the Szekszárd Tribunal (Szekszárdi Törvényszék), insofar as the matter is amenable to ordinary court proceedings.

Note: the 2022 GTC contained an arbitration clause instead of the above ordinary court route. If the parties wish to apply the arbitration clause, the following sample text may be used:

"In the event that negotiation is unsuccessful, the parties submit any dispute arising out of or in connection with the Agreement between the Service Provider and the NGO to the exclusive and final jurisdiction of the Permanent Court of Arbitration attached to the Hungarian Chamber of Commerce and Industry (Commercial Arbitration Court Budapest). The proceedings shall be conducted in accordance with the Rules of Procedure of the Court of Arbitration; the number of arbitrators shall be three; the language of proceedings shall be Hungarian. The parties exclude the reopening of proceedings regulated in Chapter IX of Act LX of 2017."

Action Item/TODO: legal decision and finalisation: ordinary court route vs. arbitration clause; the unchosen option must be deleted before entry into force.

20.3. Legal disputes between the Service Provider and the User shall be adjudicated by the court having jurisdiction and competence under the applicable laws.

20.4. The Agreement shall be governed by Hungarian law.

21. Applicable Legislation

The following legislation is applicable in particular to the interpretation and application of these GTC:

Legislation	Subject Matter
Act V of 2013 (Hungarian Civil Code, "Ptk.")	Civil law — contract formation, GTC, liability
Act CVIII of 2001 (E-Commerce Act, "Eker tv.")	Electronic commerce services
Regulation (EU) 2016/679 (GDPR)	General Data Protection Regulation
Act CXII of 2011 (Freedom of Information Act, "Infotv.")	Right of informational self-determination
Act LXXVI of 1999 (Copyright Act, "Szjt.")	Copyright
Act CLV of 1997 (Consumer Protection Act, "Fgytv.")	Consumer protection
Act XLVIII of 2008 (Act on Economic Advertising, "Grt.")	Economic advertising activity
Act XLVII of 2008 (Act on Unfair Commercial	Prohibition of unfair commercial practices against consumers — relevant to

Practices, "Fttv.")	sponsorship/advertising content (cf. Annex 1, §5.3)
Act LXXXI of 1996 (Corporate Tax Act, "Tao. tv.")	Corporate tax — donation certification
Act CLXXV of 2011 (Civil Organisations Act, "Civil tv.")	Civil organisations
Act CLXXXI of 2011	Court registration of civil organisations
Act LIII of 2017 (Anti-Money Laundering Act, "Pmt.")	Prevention of money laundering and terrorist financing
Regulation (EU) 2022/2065 (Digital Services Act, DSA)	Digital services — obligations of intermediary service providers
Government Decree 45/2014 (II. 26.)	Rules on contracts between consumers and businesses

DSA notice: Sharity is expected to qualify as a "very small enterprise" or "small enterprise" within the meaning of Article 3(l) of the DSA (assuming that the annual average number of active users in the EU does not exceed 45 million). Accordingly, the exemptions linked to micro-/small-enterprise status may be applicable.

Action Item/TODO: clarify by way of legal review the precise DSA role in which Sharity acts (e.g. hosting / online platform), and the **specific** obligations to which the exemption extends; itemised recording of the relevant articles and list of obligations.

22. Miscellaneous Provisions

22.1. The Service Provider ensures communication on matters falling within the scope of performance of the Agreement at the e-mail address office@sharity.hu.

22.2. If any provision of these GTC is invalid, the legal consequences of the invalidity shall apply exclusively to the affected provision; the remainder of the GTC shall remain in force.

22.3. Written legal declarations relating to the termination of the Agreement between the Service Provider and the NGO shall be deemed delivered if they were: - (a) sent by registered mail / with acknowledgement of receipt to the other party's registered seat; or - (b) sent with an electronic signature to the e-mail address specified in these GTC.

22.4. A consignment returned with the notation "not called for" or "acceptance refused" shall also be deemed delivered.

22.5. These GTC constitute the entire agreement of the parties with respect to the legal relationship governed herein and supersede all prior written or oral agreements.

22.6. **[NEW — GDPR Art. 37 DPO]:** Sharity Mobile Application Zrt. has examined the conditions for the mandatory appointment of a Data Protection Officer (DPO) under Article 37 of the GDPR and has concluded that the Sharity Platform does not currently qualify as a "public authority or body" [Art. 37(1)(a)], the processing of personal data does not require "regular and systematic monitoring on a large scale" [Art. 37(1)(b)], and it does not carry out large-scale processing of special categories of data falling under Art. 37(1)(c). On this basis, the appointment of a DPO is not currently mandatory. This decision must be reviewed if the number of active users of the Platform, the scope or nature of data processing changes materially.

Annexes

Annex 1: Individual Agreement for Sponsorship / Advertising Arrangements

(See separate document:

`ÁSZF/1sz_melleklet_szponzori_megallapodas.md`)

Annex 2: Privacy Notice

(See separate document: <https://app.sharity.hu/adatkezeles>)

Changelog

Version	Date	Change
1.0	2022-11-10	Original GTC — Sharity Application (donation-campaign model)
2.0	2026-02-25	Full revision and updated legal references

Related Documents and Guides

- [Sponsorship Agreement Annex](#)
- [SLA](#)
- [Stripe Responsibility Matrix](#)
- [Dispute Handling Procedure](#)

- [GDPR Data Processors](#)
- [Access Control Matrix](#)
- [Quarterly Distribution Report Template](#)
- [Win4Good Rules](#)
- [Impact Shop Guide](#)
- [Impact Challenge Guide](#)
- [NGO Card Guide](#)
- [About Us](#)
- [For Companies](#)
- [For Investors](#)